



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

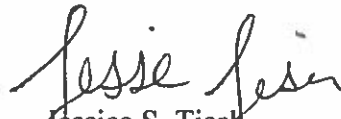
Re: Disciplinary Case No. 2024-31898 / PODS Case No. C-030420 regarding Police Officer Amela Dzihic

Date: October 28, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Dzihic spoke discourteously and used offensive language. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, Police Officer Dzihic will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



MOHAMMAD KHALID
INTERIM CHAIR

February 25, 2025

The Honorable Jessica Tisch
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Amela Dzihic
(Tax Reg #965064, CCRB #202305076)

Commissioner Tisch:

A negotiated settlement for Training was agreed upon and signed by all parties on January 23, 2025. Assistant Deputy Commissioner - Jeff S. Adler, endorsed the negotiated settlement on February 18, 2025.

On June 1, 2023, at approximately 8:30 PM, Ms. Fagbemi-Toussaint and Police Officer Amela Dzihic of PSA 5 were both driving on 132nd Street in Manhattan when their vehicles collided. Both of them parked their vehicles and Officer Dzihic approached Ms. Fagbemi-Toussaint. They began arguing over the cause of the vehicle collision and, during this conversation, Officer Dzihic referred to Ms. Fagbemi-Toussaint as “bitch.” Officer Dzihic issued Ms. Fagbemi-Toussaint a summons for reckless driving.

Given the context of Officer Dzihic’s use of the word “bitch” toward Ms. Fagbemi-Toussaint the use of the word served no lawful purpose and served only to belittle Ms. Fagbemi-Toussaint. Officer Dzihic herself noted that her use of the word was out of frustration and was not intended to serve a lawful purpose. While this exchange occurred in the immediate aftermath of a vehicle accident, that fact does not justify Officer Dzihic’s referring to Ms. Fagbemi-Toussaint as “bitch” while speaking to her.

NYPD disciplinary guidelines indicate that for Offensive Language, the mitigated penalty is the forfeiture of one (1) vacation day, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines for the following reasons:

Officer Dzihic has been an officer for seven years. She has no disciplinary history and has accepted responsibility in this matter. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommend Training.

Respectfully submitted,
ABaxter

Ashley Baxter, Esq.
APU Prosecutor
Civilian Complaint Review Board
Administrative Prosecution Unit

Cc: Craig Hayes, Esq.